Derrick LaMont Beverly, In Propria Persona / Sui Juris

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FILED
Superior Court of California
County of Los Angeles

OCT 09 2026

David W. Slayton, Executive Officer/Clerk of Court
By: A. Munoz, Deputy

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES — STANLEY MOSK COURTHOUSE

FOX NORMANDIE APARTMENTS, LP, Plaintiff, v. DERRICK L. BEVERLY, Defendant.	Trial Case No. 22STUD06657 Appellate Division No. 26APLC00322 Appellant: Derrick LaMont Beverly

STATEMENT OF FACTS AND AUTHORITIES RE PROTECTIVE APP-103 CURE, APP-104 AND CLERK'S TRANSCRIPT

I. ISSUES PRESENTED

Whether the operative APP-103 record designation, the proposed APP-104 statement, and the October 7 protective re-tender collectively satisfy the specific deficiency stated in the October 2, 2026 notice of default. Because the actual default notice and accepted filing receipts were not supplied for this draft, the answer cannot responsibly be represented as established.

II. CHRONOLOGY SUPPORTED BY THE UPLOADED DOCKET

The court's October 9 Case Access printout identifies a September 2 order/hearing, September 3 notice of appeal ("U3"), September 17 notice of filing, September 22 notice of clerical correction, September 29 court-fee-waiver order, October 2 appellate default notice, and multiple October 7 protective-cure notices and declaration. Separately, the October 9 Outlook export records a 2:28 p.m. counsel notice email. The docket establishes document listings, not the contents or legal sufficiency of the filings.

III. RECORD DESIGNATION — CRC RULE 8.831

Rule 8.831(a) ordinarily requires an appellant to serve and file the record designation within ten days after filing the notice of appeal. Under rule 8.831(b), the designation must identify the oral record election and the documentary record choice, including required dates and additional

designated documents if a clerk's transcript is elected. Appellant's stated elections are the statement on appeal and clerk's transcript. A late re-tender does not itself determine relief from default.

IV. PROPOSED STATEMENT — CRC RULE 8.837

Rule 8.837(b)(1) ordinarily requires service and filing of the proposed statement within twenty days after the rule 8.831 designation is filed. A self-represented appellant generally uses APP-104 under rule 8.837(b)(2). The exact trigger depends on the filing date of the operative designation. The October 7 notices expressly reference re-tender of APP-104 but are not substitutes for the actual accepted document or EFSP receipt.

V. DOCUMENTARY RECORD — CRC RULE 8.832

A clerk's transcript must be properly designated. Additional documents should be identified with actual filing dates. A request for additional documents is not a request to insert facts or exhibits never filed or lodged. The September 29 fee-waiver order should be reviewed before electing a fee-waiver box on APP-103.

VI. ELECTRONIC SERVICE — CRC RULE 2.251

Electronic service can be effectuated by a party, an agent, or an electronic filing service provider when authorized; proof of service must comply with rule 2.251(j) and the applicable Code of Civil Procedure. The Outlook message is corroboration of a sent correspondence, not a substitute for a signed statutory proof by an authorized server or an actual EFSP service certificate.

VII. ADVERSE FACTS AND LIMITING CONCESSIONS

The case docket itself labels the trial matter "General Jurisdiction" while the September 3 appeal entry is labeled "Limited Civil Case" and "U3." That inconsistency warrants verification but does not alone invalidate any appellate filing. The docket lists prior dismissed appeals, including 24APLC00397; none is presumed to control this separate appeal absent examination of the governing orders. Nor is any cure presumed accepted solely from October 7 docket entries.

VIII. RELIEF REQUESTED

Appellant respectfully asks that the submissions be received and associated with the correct appellate file, that the precise remaining deficiency be identified, and that the appropriate decision maker evaluate discharge of the October 2 default under the governing rules. This filing

is not presented as an independently authorized motion for an order absent compliance with applicable motion procedure.

IX. MATERIALS AND AUTHORITIES

Sources: (A) Los Angeles Superior Court Case Access printout dated October 9, 2026 (18 pages); (B) October 9, 2026 Outlook transmitted-email export (2 pages); (C) corrected Judicial Council APP-103, subject to execution and selected fields. Authorities: California Rules of Court, rules 8.831, 8.832, 8.837, and 2.251; Code of Civil Procedure §§ 1010.6 and 1013b. The actual October 2 default notice, September 29 fee-waiver order, APP-104, accepted filing receipts, and EFSP certificate remain necessary for complete evidentiary reconciliation.

Dated: October 9, 2026 (update if signed later)

DERRICK LAMONT BEVERLY, Appellant